

25NNCV08895 25NNCV08895

County: los-angeles

Division: Civil Law and Motion

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Hearing date: 2026-07-27

Motion: PLAINTIFF'S MOTION FOR PROTECTIVE ORDER; ORDER TO SHOW CAUSE RE: SANCTIONS FOR MISUSE OF CASE CITATION

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Case Number: 25NNCV08895 Hearing Date: July 27, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

LUIS
MARQUEZ,

Plaintiff(s),

vs.

GORDON
B. CHANG,

Defendant(s).

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CASE NO.: 25NNCV08895

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION FOR PROTECTIVE ORDER; ORDER TO SHOW CAUSE
RE: SANCTIONS FOR MISUSE OF CASE CITATION

Dept.

3

8:30

a.m.

July 27,
2026

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I.

INTRODUCTION

On December 15, 2023, plaintiff Luis
Marquez ("Plaintiff") filed this complaint against defendant Gordon B. Chang
("Defendant") for damages and injunctive relief for violations of the Americans
with Disabilities Act and Unruh Civil Rights Act. Plaintiff alleges that he
visited the Exclusive Rosemead Cannabis Dispensary facility located at or about
1630 Potrero Grande Dr., Rosemead, CA 91770 in January 2025 and encountered

barriers to access.

On April 10, 2026, Plaintiff filed this motion for a protective order and request for sanctions. Defendant noticed Plaintiff's deposition for April 17, 2026, a day on which Plaintiff's counsel is unavailable. Defendant chose to notice the deposition for this date despite knowing that Plaintiff's counsel was not available since the parties had conferred on rescheduling a mandatory evaluation conference ("MEC") and discussed several possible dates, one of which was April 17, 2026.

Plaintiff also argues that a protective order should issue because Defendant's deposition notice requests the production of privileged and irrelevant information.

The Court issued a tentative ruling on Plaintiff's motion for a protective order ahead of the hearing on May 6, 2026. At the hearing, the tentative was not adopted. Instead, the Court continued the hearing and scheduled an Order to Show Cause re: Sanctions for the misuse of case citations in Defendant's opposition brief; the Court ordered supplemental briefs to be filed by July 13, 2026.

On July 13, 2026, Plaintiff filed a supplemental brief and a declaration from one of his attorneys, Dennis Price.

On July 14, 2026, one day after the Court's deadline, defense counsel Larry Rothman filed a declaration in response to the OSC.

On July 21, 2026, another one of Plaintiff's attorneys, Amanda Seabock, filed a declaration in response to Mr. Rothman's declaration.

II.

MOTION

FOR PROTECTIVE ORDER

Before, during, or after a deposition, a party may seek a protective order. (Code Civ. Proc., § 2025.420, subd. (a).) The scope of relief permitted is broad, and includes both scheduling, as well as document production. (Id., subd. (b).)

The Court first notes that the motion for a protective order appears to be moot with respect to any scheduling issues. (Reply Decl., ¶ 13.) Therefore, the Court will only address the propriety of Defendant's document requests contained in his deposition notice.

A.

Documents

Requesting Privileged and Irrelevant Information

Plaintiff argues that a protective order is needed because Defendant demands the production of a privilege log even though these document requests seek, on their face, explicitly privileged materials and are improper. (Motion, p. 2.) Plaintiff also argues that Defendant's requests for privileged materials is harassing and designed to generate substantial work without resulting in any admissible evidence. (Motion, p. 3.)

Plaintiff additionally argues that information regarding his litigation history and personal life is not discoverable since whether he is a "tester engaged in serial litigation" is irrelevant. (Motion, p. 5.) Plaintiff has agreed to provide a list of recent litigation but contends that Defendant's document requests are overbroad and unduly burdensome. (Reply, pp. 8-9.) Plaintiff further argues that "intent to return" is not relevant to any issues in this case because it is a consideration of Article III standing in federal courts for purposes of issuing injunctive relief, not state court. (Motion, p. 4; Reply, pp. 5-6.)

The Court agrees that the deposition notice includes multiple document requests that explicitly seek privileged information and work product, as well as irrelevant information about Plaintiff's litigation history and personal life, specifically, RFP Nos. 1, and 7 through 9:

· RFP No. 1 requests "[a]ll lawsuits filed by Plaintiff Luis Marquez." Defendant then lists three bullet points listing: (1) all complaints, petitions, verifications, and amendments filed by Plaintiff in any court within the past five years, (2) all settlement agreements, releases, or dismissals related to those lawsuits, and (3) all communications with counsel in those lawsuits relating to disability access, intent to return,

or claimed barriers.

· RFP No. 2 demands: Plaintiff's

calendars, schedules, planners, or digital entries. Below are two bullet points identifying (1) all calendars (paper or electronic) showing Plaintiff's activities, appointments, or travel for January 2025 and the six months before and after, and (2) any entries referencing the subject property at 1630 Potrero Grande Dr.

· RFP No. 6 seeks "[a]ll documents

relating to Plaintiff's intent to return", including "[a]ny notes, emails, texts, or communications showing Plaintiff intended to return to the property" and "[a]ny documents showing Plaintiff's regular travel to or presence in Rosemead."

· RFP No. 7 seeks "[a]ll documents

relating to Plaintiff's disability-rights advocacy", specifically "[a]ny materials Plaintiff uses in connection with his stated role as a "disability rights advocate" and "[a]ny communications with advocacy groups, attorneys, or consultants."

· RFP No. 8 demands "[a]ll documents

Plaintiff intends to use at trial", specifically "[a]ny exhibits, demonstratives, photographs, or summaries."

· RFP No. 9 requests "[a]ll documents

Plaintiff has received from any third party relating to this case", including communications with Seabock Price, investigators, and any CASp inspector.

In response, Defendant does not submit

a response to Plaintiff's separate statement, making it difficult for the Court to ascertain which arguments are made in response to any particular document request. Rather, Defendant claims in his opposition brief that Plaintiff's claims of privilege are legally incorrect, while appearing to agree that "[a]ll communications" with Seabock Price, attorneys, and consultants are "categorically privileged" and that "[n]o log is required." (Opp., p. 5.) Defendant also argues that Plaintiff's litigation history and credibility are discoverable but cites three cases which do not address discoverability. (Opp., p. 6.) Rather, the three cases cited affirm that tester plaintiffs have standing to sue. Moreover, Defendant does not cite to any case law supporting his

contention that “intent to return” is relevant to an Unruh Act claim.

Defendant essentially concedes that his requests seek facially privileged information and the Court is not persuaded that the extensive discovery sought regarding Plaintiff’s litigation history and daily activities is reasonably calculated to lead to admissible evidence. Accordingly, the motion is GRANTED with respect to RFP Nos. 1, 2, 6-9. No privilege log needs to be produced in response to RFP No. 9 and Plaintiff does not need to respond to RFP Nos. 1, 2, and 6-8.

B.

Information

Implicating Plaintiff’s Right to Privacy

Last, Plaintiff argues in his separate statement that Defendant’s request for medical information is overbroad. RFP No. 4, labeled as “All documents relating to Plaintiff’s alleged disability or injury”, includes: (1) medical records, diagnoses, treatment notes, or evaluations relating to Plaintiff’s mobility impairment, (2) any documents supporting Plaintiff’s claim that he uses a wheelchair, and (3) any documents showing limitations, restrictions, or functional capacity. Plaintiff states that he will produce records demonstrating his disability, but objects to the suggestion that all his medical history is necessary. The Court agrees that RFP No. 4, as drafted, is overbroad. The protective order is GRANTED and Plaintiff need not produce documents in response to RFP No. 4. Defendant can re-serve a deposition notice with substantially narrowed requests for information regarding Plaintiff’s disability.

III.

ORDER

TO SHOW CAUSE RE: SANCTIONS FOR MISUSE OF CASE CITATIONS

The Court now addresses the parties’ supplemental briefing on Mr. Rothman’s treatment of Plaintiff’s counsel, Ms. Seabock, and Mr. Rothman’s misuse of AI in preparing his brief and determines whether to report Mr. Rothman to the State Bar or sanction him pursuant to Code of Civil Procedure (“CCP”) section 128.7. By way of background, Plaintiff’s motion included details of Mr. Rothman’s harassing and discriminatory conduct including addressing Ms. Seabock by her first name, Amanda, while addressing her male colleague, Dennis Price, as Mr. Price. Mr. Rothman also referred to

Ms. Seabock as Mr. Price's "attorney wife" in an email. Plaintiff's reply also pointed out that Defendant relied on cases which did not reflect the legal propositions for which they were cited and in one instance, included a nonexistent case name and citation.

Whenever a judge has personal knowledge, or concludes in a judicial decision, that a lawyer has committed misconduct or has violated any provision of the Rules of Professional Conduct, the judge shall take appropriate corrective action, which may include reporting the violation to the appropriate authority. (Code Jud. Ethics, canon 3D(2).) Sanctions may also be imposed under CCP section 128.7 if a judge, on the judge's own motion, enters an order describing the sanctionable conduct that appears to violate CCP section 128.7(b) and directs an attorney to show cause why it was not violated, unless within 21 days of service of the OSC, the challenged paper, claim, defense, contention, allegation, or denial is withdrawn or corrected appropriately. (Code Civ. Proc., § 128.7, subd. (c)2.)

First, California Rules of Professional Conduct ("RPC") rule 8.4.1 prohibits an attorney from unlawfully harassing or discriminating against any person on the basis of any protected characteristic, which includes marital status, sex, and gender. (Cal. Rule of Prof. Conduct R. 8.4.1). In response to the OSC, Mr. Rothman declares that he has "never abused, insulted, demeaned, or mistreated attorney Amanda Seabock." (Response to OSC, Rothman Decl., ¶ 4.) He claims he only spoke with her to request an extension at the beginning of the case, which she denied. (Id.) He also claims that his use of the phrase "attorney wife" was an "inadvertent typographical error, not a statement of bias." (Id.)

Mr. Rothman's assertions are not credible. First, the record shows his interactions with Ms. Seabock were not limited to requesting an extension to the deadline for filing a responsive pleading, nor was the extension he requested denied. Ms. Seabock agreed to an extension pursuant California Rules of Court rule 3.110, which allows the parties to "stipulate without leave of court to one 15-day extension beyond the 30-day time period prescribed for the response after service of the initial complaint." (Seabock Decl., ¶¶ 3-4.) Afterwards, Mr. Rothman and Ms. Seabock exchanged written communications and spoke on the telephone on numerous occasions regarding potential settlement and the sufficiency of Defendant's responsive pleading. (Seabock Decl., ¶¶ 5-11.)

Mr. Rothman does not deny referring to Ms. Seabock as “Amanda” while choosing to accord more respect to her male colleague by addressing him as “Mr. Price.” He omits any discussion of that aspect of misconduct and offers no apologies for this discriminatory and patronizing behavior. He also does not deny referring to her as Mr. Price’s “attorney wife.” Instead, he claims that he merely made an “inadvertent typographical error.” (Response to OSC, Rothman Decl., ¶ 4.)

This is a preposterous suggestion. One cannot contemplate what Mr. Rothman could have possibly intended to write while “inadvertently” impugning Ms. Seabock’s professional career and reputation, nor can one imagine making the same misogynistic “typographical error” twice in the same email. (Supp. Price Decl., Ex. Ex. 1.) Worst of all, Mr. Rothman does not appear to have recognized that his behavior is sexist, unprofessional, and insulting. Instead, he chooses to dismiss his statements as inadvertent mistakes without acknowledging their inherently biased nature and meaningfully apologizing for them.

Mr. Rothman’s lack of contrition extends to his misuse of AI, warranting sanctions under section 128.7. As mentioned above, Defendant’s opposition brief cited three cases that did not address the issues for which they were cited. These cases, identified by Plaintiff in his reply brief, are *Angelucci v. Century Supper Club* (2007) 41 Cal.4th 160, 178, *Munson v. Del Taco., Inc.* (2009) 46 Cal.4th 661, 676, and *White v. Square, Inc.* (2019) 7 Cal.5th 1019. None of them support, either directly or indirectly, Defendant’s assertion that a plaintiff’s litigation history is relevant or discoverable.

In response to the Court’s OSC, Mr. Rothman argues that an inadvertent citation error is not grounds for sanctions and points out that a notice of erratum was filed, which replaced the mistaken citation with the correct statutory authority. The notice of erratum referenced by Mr. Rothman does not address *Angelucci*, *Munson*, or *White*, but the nonexistent case *Do It Urself Moving & Storage, Inc. v. Brown* (2008) 168 Cal.App.4th 161, 174. Moreover, Mr. Rothman fails to explain how this nonexistent authority “inadvertently” made its way into the brief he prepared.

Mr. Rothman also states that he “do[es] not use generative AI for legal work” and “rel[ies] exclusively on Lexis and primary sources.” This assertion, like his claims of typographical error when

engaging in misogynistic behavior, is implausible. The opposition brief appears to be the product of copy-and-pasted AI prompts because it was partly written in the second person and formatted with bullet points. His supplemental brief in response to the OSC also contains what appears to be an excerpt of a query posed to AI written in the second person:

Monarch holds:

Courts must give parties notice and opportunity to be heard before imposing sanctions.

You received no prior notice that the Court viewed the citation error as sanctionable until the OSC was issued.

Thus, sanctions violate due process.

(Response to OSC, p. 6.)

Furthermore, Mr.

Rothman's reliance on *Del Biaggio v. Bansen* (2026) 2026 WL 1998607) is unavailing to him and in fact, supports the imposition of sanctions. The *Del Biaggio* court addressed an attorney who admitted the unverified use of AI, offered "some explanation" for how the misrepresentations of case law occurred, and eventually sent a letter identifying and withdrawing the misstatements in accordance with his duty of candor. (Id. at *9.) Even though the Court accepted the attorney's misrepresentation that there was no intent to mislead, the court found it appropriate to order the attorney pay a sanction of \$1,500. (Id., *8-9.) Sanctions have also been imposed in other circumstances where attorneys admitted the use of AI and accepted responsibility for inadvertently misrepresenting authority. (*Quinteros v. Harbor Distributing, LLC* (2026) 121 Cal.App.5th 60, 78; *Noland v. Land of the Free, L.P.* (2025) 114 Cal.App.5th 426, 445-446.) Here, Mr. Rothman's refusal to acknowledge his mischaracterization of the law and minimization of the burden placed on the Court and opposing counsel to address and correct those misrepresentations underscores the necessity of sanctions. (*Slichter v. Kennedy* (2025) 116 Cal.App.5th 24, 32-33.)

IV.

CONCLUSION

Plaintiff's motion is GRANTED and the

Court narrows Defendant's requests for production as follows:

RFP Nos. 1, 2, and 6-8 do not require a response.

RFP No. 4 does not require a response.

Defendant may re-serve a document request that is more narrowly tailored regarding Plaintiff's disability.

RFP No. 9 does not require the preparation of a privilege log.

Sanctions associated with the motion for a protective order are imposed on Defendant and counsel of record, Larry Rothman, jointly and severally, in the reduced amount of \$3,500, consisting of 7 hours at a reasonable hourly rate of \$500, payable within 30 days of the date of this Order.

Sanctions pursuant to Code of Civil Procedure section 128.7 are imposed on Larry Rothman, SBN 72451, in the amount of \$1,500 to the Los Angeles Superior Court, within 30 days. The Clerk of this court is ordered to notify the State Bar of California of the sanctions and provide to the State Bar of California a copy of this Order, Plaintiff's moving papers, Defendant's opposition brief, Plaintiff's reply brief, Plaintiff's supplemental brief and Declaration of Ms. Seabock, and Mr. Rothman's Response to the OSC.

A copy of this order shall also be mailed to Mr. Rothman at his address listed by the State Bar.

Plaintiff to
give notice.

Dated
this 27th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.